

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CLCL051418: WELLS FARGO BANK, N.A. vs JOSEPH MAGDALENO

07/15/2026 in Department 21

Motion for Judgment on the Pleadings

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion for Judgment on the Pleadings (*Unopposed*)

Tentative Ruling: Plaintiff Wells Fargo Bank, N.A.’s unopposed motion for judgment on the pleadings is GRANTED as to the two pleaded breach-of-contract causes of action, without leave to amend.

Judgment shall be entered in favor of Plaintiff Wells Fargo Bank, N.A. and against Defendant Joseph Magdaleno in the amount of \$7,585.22. Plaintiff’s request for costs must follow proper procedures to submit a memorandum of costs.

Plaintiff’s counsel to give notice.

Request for Judicial Notice

Plaintiff’s request for judicial notice is GRANTED under Evidence Code § 452(d), as to:

1. Plaintiff’s complaint;
2. Plaintiff’s motion to deem the Requests for Admission admitted; and
3. The Court’s May 18, 2026 order granting that motion.

The Court takes judicial notice of the existence, filing, and contents of those records, and of the legal effect of the order deeming the Requests for Admission admitted. The Court does not take judicial notice of the truth of factual allegations or assertions contained in the complaint, motion, or supporting declarations merely because they were filed with the Court. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1569.)

Meet and Confer

Plaintiff did not fully comply with CCP § 439(a), which requires the parties to meet and confer in person, by telephone, or by videoconference. Plaintiff's effort consisted solely of mailing Defendant's counsel a letter stating its position and inviting a response.

The Court nevertheless reaches the merits because an insufficient meet-and-confer process is not a ground to grant or deny a motion for judgment on the pleadings. (CCP § 439(a)(4).) Plaintiff is admonished to comply fully with the statutory meet-and-confer requirements in future proceedings.

Merits

Here, the specific admissions establish that Plaintiff issued Defendant the card, Defendant and his authorized users made the charges, Defendant agreed to repay the principal and related charges, he received and did not dispute the statements, and he owes \$7,585.22. Those admissions, together with the adequately pleaded contract claims, appear sufficient to establish contract formation, performance by Wells Fargo, breach, and damages.

Plaintiff's motion incorrectly states that the complaint asserts causes of action for money lent or paid, open book account, and account stated. The complaint alleges only breach of written contract and breach of an implied-in-fact contract. The Court therefore disregards Plaintiff's arguments concerning unpleaded common counts and grants relief only on the causes of action actually alleged.

Plaintiff's motion for judgment on the pleadings is GRANTED as to the two pleaded breach-of-contract causes of action in the amount of \$7,585.22, without leave to amend.

Plaintiff's request for costs is DENIED without prejudice. No declaration of costs or memorandum of costs has been filed. Plaintiff's request for costs must follow proper procedures regarding the submission of a memorandum of costs.

Plaintiff is to give notice within two (2) court days.